

PROFESSIONAL SERVICES AGREEMENT

RFP-16-13 DUTCHER CONCESSION OPERATION

This Agreement is made this _____ day of _____, 20____ by and between the City of Cheyenne ("CITY"), Wyoming, and _____ ("FIRM").

WITNESSETH

WHEREAS, the CITY manages, operates, maintains and controls the Parks & Recreation Department facilities, including the Dutcher Baseball Complex Concession and Restroom Facility.

WHEREAS, the CITY is in need of services to provide concessions at the Dutcher Baseball Complex Concession and Restroom Facility.

WHEREAS, the FIRM is qualified to provide the concession services desired by the CITY and has submitted a proposal dated _____ for the above desired work, a copy of which is attached hereto as "Exhibit A" and incorporated by this reference;

WHEREAS, the FIRM also agrees to provide services and information to the CITY necessary to complete the work described in the Request For Proposals dated _____, a copy of which is attached hereto as "Exhibit B" and incorporated by this reference; and

WHEREAS, the CITY desires to employ the FIRM under the terms and conditions hereinafter set forth.

NOW, THEREFORE, in consideration of the mutual promises and covenants herein contained, it is agreed by and between the CITY and the FIRM as follows:

1. SCOPE OF SERVICES:
 - a. The FIRM agrees to provide professional services for the CITY as set forth in "Exhibit A" and "Exhibit B" attached hereto and incorporated herein by this reference.
 - b. The CITY may order major changes in the scope or character of work, either decreasing or increasing the amount of the FIRM'S services. In the event that such changes are ordered, the FIRM shall be entitled to additional compensation for additional work performed. Additional compensation for major changes shall be determined in accordance with Paragraph 2 of this Contract, but in no event shall the CITY be liable for payment unless the amount of such additional compensation shall first have been agreed to in writing by the CITY. In the event that major changes are ordered pursuant to this Section, the schedule for progress and completion in Section 3 of this Contract and compensation in Section 2 shall be adjusted by negotiation between the FIRM and the CITY.
2. COMPENSATION:
 - a. The FIRM shall perform the services set forth in Exhibits "A" and "B." For the ability to provide these services the FIRM shall pay the City \$_____ per year, for the term of this contract. Such payment shall be made on or before October 31 of the current year. Failure to make such a payment may result in the loss of the ability to utilize the Dutcher Concession and Restroom Facility to provide concession services.
3. TERM AND EFFECTIVE DATE:

This Agreement shall commence on the date the last required signature is attached hereto and shall continue in full force and effect until _____ and any plans, drawings, specifications and documents are submitted to the CITY in accordance with "Exhibit A" and "B", unless this Agreement is earlier terminated pursuant to Sections 20 and 21 herein.
4. MODIFICATION:

Any changes, modifications, revisions or amendments to this Agreement which are ordered pursuant to Section 1 herein or which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
5. INDEMNIFICATION / HOLD HARMLESS:

The FIRM agrees to indemnify, hold harmless and defend the CITY from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the FIRM's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the FIRM, or its employees or subcontractors in the

performance of this Agreement. The FIRM acknowledges that it may incur a financial obligation to the CITY pursuant to the terms of this paragraph.

6. GOVERNMENTAL IMMUNITY:

The CITY and their officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement as between the parties. Further, the CITY fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

7. INSURANCE:

The FIRM shall provide the CITY with proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. The FIRM shall provide the CITY with proof of workers' compensation or employer's liability insurance coverage.

Additional Insurance Information

The FIRM shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of worker's compensation and shall provide the CITY with a copy of the endorsements.

The FIRM shall provide the CITY with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon the FIRM to immediately notify in writing the CITY of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, the FIRM shall provide the CITY with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The CITY's failure to request or review such policies, endorsements, or certificates shall not affect the CITY's rights or the FIRM's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

8. GOVERNING LAW, JURISDICTION and VENUE:

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

9. COMPLIANCE WITH LAWS:

The FIRM shall comply with all applicable federal, state and local laws, rules and regulations in the performance of this contract. The FIRM's attention is directed to the fact that all applicable Federal and State laws, municipal ordinances, and the rules and regulations of all authorities having jurisdiction over design and construction of the project shall apply to the Agreement throughout, and they will be deemed to be included in the Agreement the same as though herein written out in full. Other Laws and Regulations apply which are not included herein, and are within the FIRM's duty and responsibility for compliance therewith.

10. NONDISCRIMINATION:

The FIRM shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. §27-9-105 et seq.), the Americans With Disabilities Act (ADA), 42 U.S.C. § 12101 et seq., and the Age Discrimination in Employment Act of 1975 and/or any properly promulgated rules and regulations thereto and the FIRM assures that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against in connection with the award and performance of this Agreement on the grounds of age, sex, race, creed, color, national origin, ancestry, religion, pregnancy or qualifying disability. The FIRM further assures that it will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and the work thereunder. If the FIRM, its employees or subcontractors are found in violation of these requirements, this Agreement may be terminated. The FIRM shall be responsible for all such non-compliance and shall defend, hold harmless and indemnify the CITY therefrom.

11. ALCOHOL AND CONTROLLED SUBSTANCE POLICY:

In compliance with the Drug-Free Workplace Act of November 1988, the CITY has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by CITY employees. All parties under contract with the CITY, including the FIRM and its employees and subcontractors, are required to comply with the provisions of the CITY'S Alcohol and Controlled Substance Policy for drug and/or alcohol usage on CITY property or other sites occupied by the FIRM while performing duties and responsibilities of this contract. It is the responsibility of the FIRM to familiarize itself with the requirements of this policy and to inform all its employees and subcontractors of those requirements and to insure their compliance therewith. If the FIRM, its employees or subcontractors are found to be in violation of this policy, this contract may be terminated.

12. INDEPENDENT CONTRACTOR:

At all times during the term of this Agreement, the FIRM shall be considered an independent contractor. Neither the FIRM nor any one employed by it shall represent, act, purport to act or be deemed to be the agent, representative, employee or servant of the CITY.

13. CONFIDENTIALITY:

To the extent allowed by law, the CITY and the FIRM shall treat as confidential and not disclose to others information (including technical information, experience or data) regarding either party's plans, programs, plants, processes, products, costs, equipment, operations, or customers which come within the knowledge of the parties, without in each instance securing the prior written consent of the other party, unless such disclosure is required by law or legal process. However, nothing shall prevent either the FIRM or the CITY from disclosing to others or using in any manner information which either party can show (a) has been published or has become part of the public domain other than by acts of the FIRM or the CITY; (b) has been furnished or made known to the FIRM or the CITY by third parties without restrictions on its disclosure; or (c) was in either party's possession prior to the disclosure thereof by the CITY or the FIRM to each other. Neither the FIRM nor the CITY shall be restricted from releasing information in response to a subpoena, court order, or legal process, but, in the event such disclosure becomes necessary, the disclosing party shall notify the other party of the demand for information at least seven (7) days prior to disclosing such information so that the other party may take any and all steps provided by law to prevent the release of such information.

14. FIRM'S RESPONSIBILITIES:

The FIRM shall be responsible for all terms and conditions as set forth in this Agreement and the professional quality, technical accuracy, and timely completion of all services as set forth in Exhibits A and B and all changes in the scope or character of the work made pursuant to Sections 1 and/or 4 herein. The FIRM shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies. The FIRM shall perform all work in a professional manner in conformance with industry standards. The Firm shall maintain a diary or log book, recording hours on the job site, weather conditions, data relative to questions of extras or deductions, list of visiting officials and representatives of manufactures, fabricators, suppliers and distributors, daily activities, decisions, observations in general, and record detailed results and procedures of tests conducted.

15. NOTICES:

Any notice, correspondence or billing required to be given by the terms of this Agreement shall be delivered by hand, or delivered by mail, postage prepaid, to the addresses of the respective parties stated below:

CITY: Todd Feezer, Assistant Director
City of Cheyenne, Parks & Recreation Department
2101 O'Neil Avenue, Room 302
Cheyenne, WY 82001

FIRM: _____

16. INTELLECTUAL PROPERTY AND WORK PRODUCT

a. All work (preliminary, draft, and final) performed by the FIRM under this Agreement is the property of the CITY. The CITY will own any and all data, documents, working papers, computer programs, photographs, and other material produced by the FIRM pursuant to this Agreement, and the FIRM hereby assigns and transfers to the CITY any and all intellectual property rights for such materials. The FIRM will provide the CITY with copies of all such materials including, without limitation, any research memoranda prepared under this Agreement. Under no circumstances, including pending disputes between the CITY and the FIRM, will the FIRM fail to deliver possession of said documents and materials to the CITY upon demand.

b. The FIRM agrees to indemnify, pay the defense costs of, and hold the CITY harmless from any and all claims, demands, costs, liabilities, losses, expenses and damages (including attorneys' fees, costs, and expert witnesses' fees) arising out of or in connection with this Agreement that sound in an intellectual property claim (including but not limited to patent, copyright, trademark, trade name, or trade secret infringement).

c. This Section specifically survives the expiration or termination of this Agreement.

17. CONFLICT OF INTEREST:

In entering this Agreement, the FIRM covenants that it presently has no interest, and shall not acquire any interest, direct or indirect, financial or otherwise, which would conflict in any manner or degree with performance of the services hereunder. In addition, the FIRM covenants that in the performance of this contract, no subcontractor or person having such an interest shall be employed. The FIRM certifies that no one who has or will have any financial interest under this contract is an officer or employee of the CITY.

18. ACCEPTANCE NOT WAIVER:

The CITY'S approval of drawings, plans, specifications, reports, and incidental work or materials furnished hereunder shall not in any way relieve the FIRM from responsibility for the technical accuracy of the work. The CITY'S approval or acceptance of, or payment for, any services shall not be construed to operate as a waiver of any of the CITY'S rights under this Agreement or any of its legal rights under statute and common law arising out of the performance of this Agreement.

19. DEFAULT:

Each and every term and condition herein shall be deemed a material element of the Agreement. In the event either party shall fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

20. REMEDIES:

a. In the event a party declares the other party in default hereof, said party declaring default shall notify the defaulting party in writing and such defaulting party shall be allowed a period of fifteen (15) days to cure said default. In the event that the default remains uncorrected, the party not in default may elect to: (a) terminate the Agreement and seek damages; (b) treat the Agreement as continuing and require specific performance; or (c) avail itself of any other remedy at law or equity.

b. In the event the FIRM fails to strictly perform in accordance with this Agreement, the CITY may elect to make good such deficiencies and charge the FIRM therefore.

21. TERMINATION:

The CITY may, by written notice to the FIRM, terminate this Agreement in whole or in part by giving the FIRM fifteen (15) days written notice. Upon receipt of such notice, the FIRM shall:

a. Discontinue all services affected (unless the notice directs otherwise); and

b. Deliver to the CITY representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, accumulated by the FIRM in performing this Agreement, whether completed or in process. In event of termination, the CITY will pay the FIRM for accepted work done as of the date of termination.

22. WAIVER:

The waiver by either party of any term, condition or covenant, or breach of any term, condition or covenant, shall not constitute a waiver of any other term, condition or covenant, or breach

thereof.

23. SEVERABILITY:

If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of this Agreement, which shall continue in full force and affect.

24. SUCCESSORS AND ASSIGNS:

All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective successors and assigns.

25. ASSIGNMENT:

Neither party shall assign this Agreement without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities hereunder. However, nothing in this Agreement shall prohibit the FIRM from subcontracting to a qualified subcontractor.

26. THIRD PARTY RIGHTS:

The Parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive any of the parties' immunities.

27. ENTIRE AGREEMENT OF THE PARTIES:

This Agreement, to include Exhibits A and B, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

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IN WITNESS WHEREOF, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

The effective date of this Agreement is the date of the last signature affixed to this page.

CITY OF CHEYENNE, WYOMING

BY:

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Date: _____

FIRM

BY: _____

Title: _____

Date: _____

Address: _____
